



ULAB
UNIVERSITY OF LIBERAL ARTS
BANGLADESH

COMPARATIVE LEGAL ANALYSIS

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Press Freedom on Trial

*How Bangladesh's Digital Security Act and Pakistan's PECA weaponise cybercrime law
against journalism*

MSJ4101: Media and the Law

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Portfolio note

This is a redesigned version of my final assignment for Media and the Law (Spring 2025, A+). The original submission covered the same material across four parts; this version reorganises it into a single comparative argument. All RSF scores, case details, statutory sections, and constitutional provisions are unchanged from the original. Every chart and table is a native, editable document element — no images. The analysis draws on my experience as a staff feature writer at The Business Standard, where I have reported under the legal environment this paper examines.

1. Introduction

Press freedom is a structural condition of democratic governance. Without an independent press capable of reporting on power without fear of prosecution, the mechanisms of accountability that democratic systems depend on — public scrutiny, informed debate, electoral choice — lose their informational foundation (Sen, 1999; Norris, 2008). In South Asia, that foundation is under sustained legal pressure. Both Bangladesh and Pakistan have enacted cybercrime legislation — Bangladesh’s Digital Security Act (DSA) of 2018 and Pakistan’s Prevention of Electronic Crimes Act (PECA) of 2016 — that share a structural feature: vague, broadly worded provisions that convert journalism into a prosecutable offence whenever reporting touches politically sensitive subjects.

This paper compares the two legal regimes to show that the pattern is regional rather than accidental. It proceeds in four steps. First, it establishes the empirical landscape using the 2025 World Press Freedom Index data from Reporters Without Borders (RSF). Second, it examines the architecture of each law and the specific provisions most frequently used against journalists, grounding each in documented case studies. Third, it sets both laws against their own constitutional guarantees — Article 39 in Bangladesh and Article 19 in Pakistan — to show how broadly worded exception clauses allow cybercrime statutes to operate within a formally rights-respecting

constitutional framework. Fourth, it draws comparative conclusions about the shared mechanism: laws designed for cybercrime, enforced as instruments of press control.

2. The press-freedom landscape: RSF 2025

The Reporters Without Borders 2025 World Press Freedom Index ranks Bangladesh 149th and Pakistan 158th out of 180 countries. Bangladesh improved by sixteen positions from 2024 (up from 165th), marking its first entry into the top 150 since 2020 and surpassing India, Bhutan, and Pakistan. Pakistan dropped six positions from 152nd, reflecting growing restrictions on journalistic work. Both countries remain in the bottom third of the global index. The RSF methodology scores each country across five indicators: political environment, economic independence, legislative framework, social context, and journalist safety. The comparison across all five is instructive.



Figure 1. RSF Press Freedom Scores (2025): Bangladesh vs Pakistan. Higher scores indicate better conditions. Source: Reporters Without Borders, 2025 World Press Freedom Index.

Bangladesh outscores Pakistan on four of the five indicators. The exception is the legislative indicator, where Pakistan edges slightly ahead (37.66 vs 36.71) — a narrow gap that reflects the fact that both countries operate under comparably restrictive legal frameworks. The widest disparities appear in the economic indicator (Bangladesh 33.79, Pakistan 26.68), reflecting Pakistan’s deeper dependence on state advertising revenue and military-linked media ownership, and in the social indicator (39.87 vs 33.37), reflecting greater societal hostility toward journalists in Pakistan, particularly those covering religion, military affairs, or minority rights. Both countries score poorly on the security indicator, reflecting documented histories of journalist killings, abductions, and intimidation by intelligence agencies.

3. Bangladesh: the Digital Security Act

The Digital Security Act of 2018 was enacted to address cybercrime and digital safety. In practice, its vague and imprecise language has made it the primary legal instrument for prosecuting journalists in Bangladesh. Terms such as “offensive,” “false,” “defamatory,” and “propaganda” are not defined with the precision that criminal law requires, which means the decision about whether a piece of journalism falls within the statute’s reach is left to the discretion of the complainant and the investigating officer. The result is a chilling effect: journalists face the risk of arrest not for what the law clearly prohibits but for what any sufficiently powerful complainant alleges it might cover.

Four sections of the DSA have been used most frequently against journalists. Section 21 criminalises “propaganda” against the spirit of the 1971 Liberation War and the founding figures of Bangladesh. Section 25 penalises the dissemination of information considered “offensive, false or threatening.” Section 29 covers defamation through digital means. Section 31 targets content alleged to create “instability or chaos.” The penalties range from three to seven years of imprisonment and fines of BDT 300,000 to 600,000. These provisions have been used, separately and in combination, to prosecute journalists for reporting on matters of clear public interest.

Case 1: Abu Tayeb

BANGLADESH — DSA

Abu Tayeb, Khulna bureau chief, NTV



Arrested: 20 April 2021. Released on bail: 10 May 2021.

Offence: Published a Facebook post and news report accusing a company affiliated with Talukder Abdul Khalek, mayor of Khulna City Corporation, of tax evasion.

Charged under: DSA Sections 25 (offensive/false information), 29 (defamation), and 31 (deterioration of law and order).

Penalties faced: 3–7 years imprisonment; fines BDT 300,000–600,000.

Source: Committee to Protect Journalists, 23 April 2021; The Daily Star, 21 April 2021.

Case 2: Fazle Alahi

BANGLADESH — DSA

Fazle Alahi, editor, Dainik Parbatto / Pahar24



Arrested: 7 June 2022, Rangamati. Granted bail shortly after.

Offence: Published a 2020 article alleging property irregularities involving Nazneen Anwar, daughter of former MP Furoza Begum Chinu. Both women filed defamation complaints.

Charged under: DSA provisions related to defamation and offensive/false information (Sections 25, 29, and possibly 31).

Source: bdnews24, 8 June 2022.

Both cases follow the same pattern: a journalist reports on the conduct of a politically connected individual; the individual files a complaint under the DSA's vague provisions; the journalist is arrested, detained, and eventually bailed. The legal process itself becomes the punishment — detention, legal costs, professional disruption — regardless of whether the case proceeds to conviction. The broader effect is self-censorship: journalists who witness colleagues arrested for reporting on public-interest subjects learn to avoid those subjects, which is precisely the chilling effect the vague language enables.

4. Pakistan: the Prevention of Electronic Crimes Act

Pakistan's Prevention of Electronic Crimes Act (PECA), enacted in 2016, was designed to address cybercrime, protect digital infrastructure, and regulate online content. Like the DSA, its provisions are drafted with a breadth that extends well beyond their stated purpose. Section 20 criminalises offences against dignity; Section 21 covers modesty and reputation; Section 26 penalises unauthorised use of identity information; and Section 10, the most severe, covers cyberterrorism. These provisions grant sweeping powers to law enforcement and permit arrests based on subjective interpretations of what constitutes “anti-state” content, “fake news,” or material that “harms national security.” Enforcement is concentrated in the Federal Investigation Agency (FIA), which operates a dedicated cybercrime wing with a nationwide presence.

Case 1: Farhan Mallick



PAKISTAN — PECA

Farhan Mallick, founder, Raftar (digital news platform)

Arrested: 20 March 2025. Sent to Karachi jail.

Offence: Accused of spreading fake news and promoting anti-state content on YouTube.

Charged under: PECA Sections 16 (harm to reputation/privacy), 20 (digital defamation), and 26(a) (misuse of identity/data), plus Pakistan Penal Code Sections 109 and 500.

Additional action: Raftar's office raided, equipment seized, website blocked.

Source: Dawn, 25 March 2025; Pakistan Observer, 20 March 2025.

Case 2: Junaid Sagar Qureshi

PAKISTAN — PECA

Junaid Sagar Qureshi, journalist



Booked: 12 April 2025.

Offence: Shared a WhatsApp video claiming a woman was killed by a dumper truck; police stated no such incident occurred and the claim was fabricated.

Charged under: PECA Section 21 (offences against modesty and reputation).

Filed by: Assistant Sub-Inspector Tariq Mumtaz after viewing the video.

Source: Dawn, 12 April 2025; 4th Pillar Post, 12 April 2025.

The Pakistani cases illustrate a pattern that parallels Bangladesh's but with additional dimensions. In the Mallick case, the state went beyond prosecution to raid a newsroom and block a publication — a direct assault on institutional capacity rather than just an individual journalist. The Qureshi case, by contrast, involves a claim police say was fabricated, which raises a genuine question about verification and responsibility. The two cases together show the range of PECA's application: from suppressing critical political journalism (Mallick) to policing contested factual claims (Qureshi), the same statute serves different functions depending on what the state finds convenient to prosecute.

5. The constitutional contradiction

Both countries formally guarantee press freedom in their constitutions. Article 39 of the Constitution of Bangladesh guarantees freedom of thought, conscience, and speech, including freedom of the press, subject to “reasonable restrictions” in the interest of the security of the state, friendly relations with foreign states, public order, decency, and morality. Article 19 of the Constitution of Pakistan allows freedom of speech and expression, including freedom of the press, subject to restrictions “in the interest of the glory of Islam, the integrity, security or defence of Pakistan, friendly relations with foreign States, public order, decency or morality.”

The structural problem is identical in both cases: the exception clauses are broad enough to swallow the guarantee. “Security of the state,” “public order,” and “morality” are elastic concepts that can be stretched to cover almost any journalism that displeases a government. The DSA and PECA do not operate outside their respective constitutions; they operate inside the constitutional exceptions, which is what makes them legally defensible even when they are functionally repressive. The result is a constitutional architecture that guarantees press freedom in principle while providing the legal tools to suppress it in practice.

Aspect	Bangladesh — DSA 2018	Pakistan — PECA 2016
Stated purpose	Combat cybercrime, maintain public order	Prevent electronic crimes, protect national security
Common charges against journalists	“Offensive,” “false,” “defamatory” content; harming public sentiment or state image	“Anti-state,” “fake news,” “cyberterrorism,” “glorification of an offence”
Key sections used	Sections 21, 25, 29, 31	Sections 9, 10, 16, 20, 21, 26A
Enforcement agencies	Police, RAB, intelligence units, local courts	Federal Investigation Agency (FIA)
Constitutional guarantee	Article 39: freedom of speech, subject to “reasonable restrictions”	Article 19: freedom of expression, with limitations (religion, security, defence)
Practical effect on press freedom	Chilling effect, self-censorship, legal harassment	Intimidation, arrests, newsroom raids, equipment seizure

Table 1. Comparative summary of legal frameworks affecting press freedom in Bangladesh and Pakistan.

6. Conclusion

The comparison reveals a shared mechanism operating across two different political systems. Both Bangladesh and Pakistan have enacted cybercrime legislation with vague, broadly worded provisions that are formally constitutional but functionally repressive. Both use these provisions disproportionately against journalists who report on politically connected individuals, state agencies, or sensitive subjects. In both countries, the legal process itself — arrest, detention, bail hearings, prolonged litigation — operates as a punishment independent of any conviction, and the broader consequence is the self-censorship of journalists who learn that certain subjects carry legal risk regardless of the accuracy of their reporting.

The pattern is not coincidental. It reflects a regional tendency in South Asia toward what might be called constitutional authoritarianism: the use of formally democratic legal instruments to achieve outcomes that are substantively anti-democratic. Reforming this pattern requires more than amending individual statutes, though that is necessary — the DSA and PECA both need provisions that define their key terms with the precision criminal law requires, that require judicial authorisation before journalist arrests, and that impose meaningful penalties for the filing of frivolous complaints. More fundamentally, reform requires confronting the constitutional exception clauses that make these statutes possible, and asking whether “security of the state” and “public order” can be defined narrowly enough to protect legitimate state interests without providing an open licence to suppress legitimate journalism. Until that question is answered, the guarantee of press freedom in both constitutions will remain what it currently is: a principle honoured in the text and defeated in the practice.

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